

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2132

By: Kannady

AS INTRODUCED

An Act relating to state identification cards; amending 47 O.S. 2021, Section 6-105.3, as last amended by Section 3, Chapter 315, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105.3), which relates to issuance of identification cards; allowing certain students to receive a state identification card at no charge; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 6-105.3, as last amended by Section 3, Chapter 315, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105.3), is amended to read as follows:

Section 6-105.3. A. In addition to the licenses to operate motor vehicles, the Department of Public Safety may issue cards to Oklahoma residents for purposes of identification only. The identification cards shall be issued, renewed, replaced, canceled and denied in the same manner as driver licenses in this state. A licensee whose record reflects a notation of the person's proof of legal presence, verified by the U.S. Department of Homeland Security, or proof of U.S. citizenship, may obtain a REAL ID

1 Compliant Identification Card or a Noncompliant Identification Card
2 from a motor license agent or the Department of Public Safety,
3 regardless of the status of the license held by the licensee.
4 Provided, the licensee must comply with all REAL ID documentation
5 requirements to obtain a REAL ID Compliant Identification Card. A
6 person shall not apply for or possess more than one state-issued or
7 territory-issued REAL ID Compliant Identification Card pursuant to
8 the provisions of Section 6-101 of this title.

9 The application for an identification card by any person under
10 the age of eighteen (18) years shall be signed and verified by a
11 custodial legal parent or legal guardian, either in person before a
12 person authorized to administer oaths or electronically if
13 completing an online application, or a notarized affidavit signed by
14 a custodial legal parent or legal guardian submitted before a person
15 authorized to administer oaths by the person under the age of
16 eighteen (18) years with the application. Provided, that persons
17 under eighteen (18) years of age who are homeless children and
18 youth, as defined in Section 600 of Title 10 of the Oklahoma
19 Statutes and verified as such through the process established in
20 Section ~~2~~ 601.6d of ~~this act~~ Title 10 of the Oklahoma Statutes,
21 shall be allowed to apply for a REAL ID Noncompliant Identification
22 Card, which shall be valid for a period of four (4) years from the
23 month of issuance, without the signature of their parent or legal
24 guardian. Except as otherwise provided in this section, the

1 identification cards shall be valid for a period of either four (4)
2 years from the month of issuance or eight (8) years from the month
3 of issuance; however, the identification cards issued to persons
4 sixty-five (65) years of age or older shall be valid indefinitely
5 from the month of issuance.

6 B. 1. The Department of Corrections shall coordinate with the
7 Department of Public Safety to provide REAL ID Noncompliant
8 Identification Cards to all inmates who do not have a current state-
9 issued identification card or driver license upon their release from
10 custody. The identification cards shall be issued, replaced,
11 canceled and denied in the same manner as driver licenses in this
12 state.

13 2. The Department of Public Safety shall allow the use of a
14 certified copy of a birth certificate coupled with a Department of
15 Corrections-issued consolidated record card to serve as a valid form
16 of photo identification documentation to obtain a REAL ID
17 Noncompliant Identification Card.

18 3. REAL ID Noncompliant Identification Cards issued with a
19 consolidated record card from the Department of Corrections for
20 inmates shall be valid for a period of four (4) years from the month
21 of issuance for an allowable fee to be determined by the Department
22 of Public Safety and are nonrenewable and nontransferable.

23 4. The fee charged for the issuance or replacement of a REAL ID
24 Noncompliant Identification Card pursuant to this subsection shall

1 be deposited in the Department of Public Safety Revolving Fund.

2 Provided, however, REAL ID Noncompliant Identification Cards issued
3 to individuals required to register pursuant to the Sex Offenders
4 Registration Act shall only be valid for a period of one (1) year.
5 No person sixty-five (65) years of age or older shall be charged a
6 fee for a REAL ID Noncompliant Identification Card.

7 5. The Department of Public Safety is authorized to promulgate
8 rules and procedures to implement the provisions of this subsection.

9 C. No person shall hold more than one state-issued or
10 territory-issued REAL ID Compliant Driver License or REAL ID
11 Compliant Identification Card, as defined in subsection G of Section
12 6-101 of this title. The Department shall not issue a REAL ID
13 Compliant Identification Card to any applicant who has been
14 previously issued a REAL ID Compliant Driver License or REAL ID
15 Compliant Identification Card unless such license or identification
16 card has been surrendered to the Department by the applicant. The
17 Department may promulgate rules related to the issuance of
18 replacement REAL ID Compliant Identification Cards in the event of
19 loss or theft.

20 D. The fee charged for the issuance or renewal of a REAL ID
21 Compliant Identification Card shall be Twenty-five Dollars (\$25.00)
22 for a 4-year card and Fifty Dollars (\$50.00) for an 8-year card.
23 The fee charged for the issuance or renewal of a REAL ID
24 Noncompliant Identification Card pursuant to this section shall be

1 Twenty-five Dollars (\$25.00) for a 4-year card and Fifty Dollars
2 (\$50.00) for an 8-year card; however, no person sixty-five (65)
3 years of age or older, a high school student who is at least
4 fourteen (14) years of age or older, one hundred percent (100%)
5 disabled veteran described in subsection P of Section 6-101 of this
6 title, or persons who are homeless children and youth as defined in
7 Section 600 of Title 10 of the Oklahoma Statutes and verified
8 through the process established in Section 2 601.6d of ~~this act~~
9 Title 10 of the Oklahoma Statutes shall be charged a fee for an
10 identification card. Of each fee charged pursuant to the provisions
11 of this subsection:

12 1. Seven Dollars (\$7.00) of a 4-year card and Fourteen Dollars
13 (\$14.00) of an 8-year card shall be apportioned as provided in
14 Section 1104 of this title;

15 2. Three Dollars (\$3.00) of a 4-year card and Six Dollars
16 (\$6.00) of an 8-year card shall be credited to the Department of
17 Public Safety Computer Imaging System Revolving Fund to be used
18 solely for the purpose of the administration and maintenance of the
19 computerized imaging system of the Department;

20 3. Ten Dollars (\$10.00) of a 4-year card and Twenty Dollars
21 (\$20.00) of an 8-year card shall be deposited in the Department of
22 Public Safety Revolving Fund;
23
24

1 4. Three Dollars (\$3.00) of a 4-year card and Six Dollars
2 (\$6.00) of an 8-year card shall be deposited to the State Public
3 Safety Fund created in Section 2-147 of this title; and

4 5. Two Dollars (\$2.00) for a 4-year card and Four Dollars
5 (\$4.00) for an 8-year card of the fee authorized by this subsection
6 related to the issuance or renewal of an identification card by a
7 motor license agent that does process approved applications or
8 renewals for REAL ID Compliant and REAL ID Noncompliant Driver
9 Licenses or Identification Cards shall be retained by the licensed
10 operator through June 30, 2023. Beginning July 1, 2023, these
11 monies shall be retained by the licensed operator pursuant to
12 subsection E of Section 1141.1 of this title.

13 E. The fee charged for replacement of a REAL ID Compliant
14 Identification Card, or REAL ID Noncompliant Identification Card,
15 shall be Twenty-five Dollars (\$25.00); however, no person sixty-five
16 (65) years of age or older shall be charged a fee for an
17 identification card replacement. Of each fee charged pursuant to
18 the provisions of this subsection:

19 1. Seven Dollars (\$7.00) shall be apportioned as provided in
20 Section 1104 of this title;

21 2. Three Dollars (\$3.00) shall be credited to the Department of
22 Public Safety Computer Imaging System Revolving Fund to be used
23 solely for the purpose of the administration and maintenance of the
24 computerized imaging system of the Department;

1 3. Ten Dollars (\$10.00) shall be deposited in the Department of
2 Public Safety Revolving Fund;

3 4. Three Dollars (\$3.00) shall be deposited to the State Public
4 Safety Fund created in Section 2-147 of this title; and

5 5. Two Dollars (\$2.00) of the fee authorized by this subsection
6 related to the replacement of an identification card by a motor
7 license agent that does process approved applications or renewals
8 for REAL ID Compliant or REAL ID Noncompliant Driver Licenses or
9 Identification Cards shall be retained by the licensed operator
10 through June 30, 2023. Beginning July 1, 2023, these monies shall
11 be retained by the licensed operator pursuant to subsection E of
12 Section 1141.1 of this title.

13 F. The Oklahoma Tax Commission is hereby authorized to
14 reimburse, from funds available to that agency, each motor license
15 agent issuing an identification card to a person sixty-five (65)
16 years of age or older, an amount not to exceed One Dollar (\$1.00)
17 for each card or driver license so issued through June 30, 2023.
18 The Tax Commission shall develop procedures for claims for
19 reimbursement.

20 G. Notwithstanding any other provision of law, when a person
21 makes application for a new identification card, or makes
22 application to renew an identification card, and the person has been
23 convicted of, or received a deferred judgment for, any offense
24 required to register pursuant to the Sex Offenders Registration Act,

1 the identification card shall be valid for a period of one (1) year
2 from the month of issuance, but may be renewed yearly during the
3 time the person is subject to registration on the Sex Offender
4 Registry. The cost for such identification card shall be the same
5 as for other identification cards and renewals.

6 H. Nothing in this section requires or authorizes the
7 Department of Public Safety to issue a REAL ID Noncompliant
8 Identification Card without the documentation required by the
9 provisions of paragraph 9 of subsection A of Section 6-103 of this
10 title.

11 SECTION 2. This act shall become effective November 1, 2025.

12

13 60-1-10023 JBH 10/14/24

14

15

16

17

18

19

20

21

22

23

24